

25SMCV05311 25SMCV05311

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Case Number: 25SMCV05311 Hearing Date: September 18, 2026 Dept: P

Tentative

Ruling

Alejandro

Garcia, et al. v. American Honda Motor Co., Case No. 25SMCV05311

Motions:

(1)

Honda's

Motion to Compel Responses to Special Interrogatories, Set One from Juan Garcia

Madera

(2)

Honda's

Motion to Compel Responses to Request for Production, Set One from Juan Garcia

Madera

(3)

Honda's

Motion to Compel Responses to Form Interrogatories, Set One from Juan Garcia

Madera

Hearing

Date: September 18, 2026

Background

This is a

lemon law case. Plaintiffs Alejandro Garcia and Juan Garcia Madera sue Defendant American Honda Motor Co., Inc. for breach of implied and express warranties and violation of the Song-Beverly Act. Plaintiffs allege that Honda failed to repair battery, axle, and other issues with their leased 2024 Honda Prologue. (Complaint, ¶¶ 6-12.)

On October

10, 2025, Plaintiffs filed the complaint.

On May 11,

2026, Honda filed six Motions to Compel Discovery seeking responses to special interrogatories, form interrogatories, and requests for production from both Plaintiffs.

On August

27, 2026, Honda took the motions directed at Plaintiff Alejandro Garcia off calendar.

On

September 11, 2026, Honda filed notices of non-opposition regarding the motions against Juan Garcia Madera.

Motions

to Compel Response to Form and Special Interrogatories, Set One

If a responding party has not produced any responses to form interrogatories, special interrogatories, requests for production of documents, or requests for admission, they may move to compel the responding party to produce answers, and objections are waived. (See Code Civ. Proc. § 2030.290(a) [interrogatories]; Code Civ. Proc. § 2031.300 [requests for production of documents]; Code Civ. Proc., § 2033.280(a) [requests for admission.].) However, when the responding party serves substantially compliant responses before the hearing, the court can still grant the motion (if it finds the responses fail to resolve the issues raised by the motion) and grant sanctions. (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants*, (2007) 148 Cal.App.4th 390, 409.)

California

Rules of Court, rule 3.1348(a) provides, “The court may award sanctions under

the Discovery Act in favor of a party who files a motion to compel discovery, even though no opposition to the motion was filed, or opposition to the motion was withdrawn, or the requested discovery was provided to the moving party after the motion was filed.”

Honda

served the form and special interrogatories on Juan Garcia Madera on March 24, 2026. Responses were due on April 27, 2026. (Barakat Decl., ¶¶ 3-5.) As of these motions’ filing date, Honda still had not received responses. (Id. at ¶ 6.) Absent any opposition showing that responsive discovery was produced, Honda’s Motions to Compel Response to Form and Special Interrogatories, Set One are GRANTED.

Honda

seeks sanctions in the amount of \$960 on each Motion to Compel Response to Interrogatories. Honda requests attorneys’ fees at \$300 per hour for one hour drafting each motion, one hour responding to opposition, and one hour attending hearing, plus the \$60 filing fee. Honda’s attorney’s rate is reasonable, as is the time spent drafting the motions and allocated for attending the hearing. Since these motions are unopposed, the Court will not grant sanctions for time preparing a reply. \$1,320 in sanctions are GRANTED.

Motion

to Compel Response to Request for Production, Set One

“If a

party to whom the demand for inspection, copying, testing, or sampling is directed fails to serve a timely response to it, . . . the party to whom the demand . . . is directed waives any objection to the demand,” unless the party has subsequently served responses that are in substantial compliance with the request or the party’s failure to serve was the result of mistake, inadvertence, or excusable neglect. (Code Civ. Proc. § 2031.300)

The party

making the demand may move for an order compelling response to the demand. (Ibid.) There is no requirement that a demanding party include an allegation that it made an attempt to resolve the failure to respond before filing the motion. (Code Civ. Proc. § 2031.300(b).)

The same

facts apply to Honda's Motion to Compel Response to Request for Production, Set One, as applied to its Motions to Compel Response to Form and Special Interrogatories, Set One.

Accordingly,

Honda's Motion to Compel Response to Request for Production, Set One, is GRANTED. Sanctions are likewise GRANTED in the amount of \$660.

Conclusion

Honda's

Motion to Compel Response to Form Interrogatories, Set One is GRANTED. Juan Garcia Madera is ordered to produce responsive discovery, without objections, within ten (10) days. Honda is awarded \$660 in sanctions.

Honda's

Motion to Compel Response to Special Interrogatories, Set One is GRANTED. Juan Garcia Madera is ordered to produce responsive discovery, without objections, within ten (10) days. Honda is awarded \$660 in sanctions.

Honda's

Motion to Compel Response to Request for Production, Set One is GRANTED. Juan Garcia Madera is ordered to produce responsive discovery, without objections, within ten (10) days. Honda is awarded \$660 in sanctions, payable within ten days.